

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ SEP 07 2007 ★

BROOKLYN OFFICE

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

----- x
MARCIA STUART, IVAN RAWLS, ANEB
SENKITA-EL and ADBUL HAAQ ISLAM,

Plaintiffs,

-against-

THE CITY OF NEW YORK, a municipal entity,
NEW YORK CITY POLICE LIEUTENANT
(FNU) LOPIELO; NEW YORK CITY POLICE
OFFICER KEVIN MCCARTHY, Shield No.
2022; NEW YORK CITY POLICE OFFICER
VLAD KOGAN, Shield No. 5727; NEW YORK
CITY POLICE OFFICER DONNA BUSACCO,
Shield No. 00985, individually and in their
official capacities; and JOHN DOES 1-10,
New York City Police Officers, Supervisors
and/or Commanders, individually and in their
official capacities,

Defendants.
----- x

CV 07

3750

07 Civ. _____

COMPLAINT

JURY TRIAL DEMANDED

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiffs, MARCIA STUART, IVAN RAWLS, ANEB SENKITA-EL and ADBUL HAAQ ISLAM, seek relief for defendants' violation, under color of state law, of their rights, privileges and immunities secured by the Civil Rights Act of 1871, 42 U.S.C. §1983, the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the Constitution and laws of the State of New York, on or about June 10, 2006.

2. Defendants, THE CITY OF NEW YORK, a municipal entity; NEW YORK CITY POLICE LIEUTENANT (FNU) LOPIELO; NEW YORK CITY POLICE OFFICER KEVIN

MCCARTHY, Shield No. 2022; NEW YORK CITY POLICE OFFICER VLAD KOGAN, Shield No. 5727; NEW YORK CITY POLICE OFFICER DONNA BUSACCO, Shield No. 00985, and JOHN DOES New York City Police Officers, Supervisors and/or Commanders, the exact number which is unknown at this time, acting individually and in their official capacities, jointly and severally, did cause plaintiffs MARCIA STUART, IVAN RAWLS, ANEB SENKITA-EL and ADBUL HAAQ ISLAM, to be subject to, *inter alia*, excessive and unreasonable force and false arrest and imprisonment causing them serious physical and mental injury.

3. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of attorney fees and costs, and such other and further relief as the Court deems proper.

JURISDICTION

4. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343 (3) and (4), as this action seeks redress for the violation of plaintiff's constitutional and civil rights.

5. Plaintiff's claims for declaratory relief is authorized by 28 §§ 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

6. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367(a), over any and all state constitutional and state law claims that are so related to the claims within the original jurisdiction of this Court that they form part of the same case or controversy.

VENUE

7. Venue is proper in the United States District Court for the Eastern District of New

York pursuant to 28 U.S.C. § 1391 (b)(2), in that this is the judicial district in which the events giving rise to the claim occurred.

JURY DEMAND

8. Plaintiffs demand trial by jury in this action on each and every one of their claims.

PARTIES

9. Plaintiff, MARCIA STUART, is a citizen of the United States, and is and was at all times relevant herein a resident of the City of New York, County of Kings, State of New York.

10. Plaintiff, IVAN RAWLS, is a citizen of the United States, and is and was at all times relevant herein a resident of the City of New York, County of Kings, State of New York.

11. Plaintiff, ANEB SENKITA-EL, is a citizen of the United States, and was at all times relevant herein a resident of the City of New York, County of Kings, State of New York. He currently resides in New Jersey.

12. Plaintiff, ABDUL HAAQ ISLAM, is a citizen of the United States, and is and was at all times relevant herein a resident of the City of New York, County of Kings, State of New York.

13. Defendant CITY OF NEW YORK ("the City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police

force and the employment of police officers.

14. Defendant (FNU) LOPIELLO, is or was at all times relevant to this complaint, a lieutenant employed by the New York City Police Department (“NYPD”).

15. Defendant KEVIN MCCARTHY, Shield No. 2022, is or was at all times relevant to this complaint, a police officer employed by the NYPD.

16. Defendant VLAD KOGAN, Shield No. 5727, is or was at all times relevant to this complaint, a police officer employed by the NYPD.

17. Defendant DONNA BUSACCO, Shield No. 00985, is or was at all times relevant to this complaint, a police officer employed by the NYPD.

18. Defendants JOHN DOES, are, or were at all times relevant to the complaint, police officers, supervisors, and/or commanders in the NYPD, and include individuals who assisted and/or conspired to and/or acted in concert and/or did engage in the violation’s of plaintiff’s rights described herein, or who failed to protect the plaintiffs from violations of their constitutional rights.

19. Defendant (FNU) LOPIELLO, KEVIN MCCARTHY, VLAD KOGAN, DONNA BUSACCO, and JOHN DOES (collectively, “the individual defendants”) are, or at all times relevant to the complaint, were, employees, agents, servants, and/or officers of the City of New York and/or the NYPD.

20. At all times relevant herein, each of the individual defendants acted under color of law in the course and scope of his duties and functions as an agent, employee, servant and/or officer of the City and/or NYPD in engaging in the conduct described herein.

21. At all times relevant herein, the individual defendants have acted

for and on behalf of the City and/or the NYPD, and incidental to the lawful pursuit of their duties as officers, agents, employees, and/or servants of the City and/or NYPD.

22. At all times relevant herein, the individual defendants violated clearly established constitutional standards under the First, Fourth, Fifth and Fourteenth Amendments of which a reasonable police officer and/or public official under his respective circumstances would have known.

STATEMENT OF FACTS

23. On June 10, 2006, in the mid-afternoon, a marked New York City Police Department patrol car, which was traveling east bound on Macon Street, ran a red light at a high rate of speed at the intersection where Macon Street intersects with Nostrand Avenue, in the borough of Brooklyn, New York. At the time of this incident, the sidewalks were crowded with pedestrians.

24. The patrol car struck another vehicle, which at the time was traveling southbound on Nostrand Avenue, containing two passengers and forced that vehicle off the street onto the sidewalk where it came to rest literally at the entrance to a store on the corner of Nostrand and Macon.

25. At the time of this accident, there were two white police officers in the front seat of the patrol car, and one passenger, a young black male, in the back seat of the patrol car. On information and belief, the young black male had just been arrested and was being transported to the 79th Precinct. On information and belief, no emergency or exigent circumstances existed which would have justified the police officers in traveling at a high rate of speed and running a red light. Immediately after the crash, the two white police officers appeared to be uninjured as

they were walking around outside of their vehicle.

26. The two passengers, a Black man and woman, were seated in the front row of their vehicle and they appeared to be seriously injured. The air bag on their car had deployed and they were slumped over and complaining of being in pain.

27. The accident attracted a crowd almost instantly, particularly given that the accident occurred on a busy commercial street on a warm Saturday afternoon when many people were out shopping, running errands, and in route to other destinations.

28. Within minutes of the accident, numerous police officers arrived on the scene, along with paramedics. Rather than tend to the two individuals who appeared to be the most seriously injured, the police officers and paramedics who arrived on the scene were tending to the police officers, although they did not appear to be injured.

29. Many of the onlookers became concerned about the fact that no emergency services were being provided to the two individuals whose car was struck by the police car and began to voice their concerns about this and complain about the lack of services. In response, the police began to order people who had gathered around the accident to leave the scene and move to the sidewalks. Without provocation or justification, the police officers became very aggressive and disrespectful toward the crowd, including shoving, grabbing and cursing at people who were merely observing the scene and complaining about the failure of the police to tend to those most seriously injured in the accident, who happened to be black.

30. What followed next amounted to a police riot, as the police, whose numbers were constantly being reinforced, began to indiscriminately arrest individuals, including the plaintiffs herein, who were merely observing and/or commenting on the situation. At no time prior to the

police turning aggressive had anyone in the crowd engaged in any hostile or aggressive physical act against the police. At most, members of the crowd were expressing their displeasure at what appeared to be a fundamental lack of concern about the injured black passengers in the car struck by the police car.

PLAINTIFF MARCIA STUART

31. Among those whose attention was drawn to this accident were the plaintiffs in this action. Plaintiff MARCIA STUART, who lived in the immediate area, was on her way to church with her daughter, Ramona. Just before the accident, plaintiff MARCIA STUART had separated from her daughter. Plaintiff MARCIA STUART went to a mailbox on one side of Nostrand Avenue and her daughter crossed the street and went to make an appointment for her son at a barber shop on the other side of the street. The two had planned to reconvene at the corner of Nostrand and Macon and proceed to church after completing their respective errands.

32. Plaintiff MARCIA STUART, after depositing her mail in the mailbox, was proceeding down the street when she heard a police officer say, "arrest her." At that point, plaintiff MARCIA STUART, without any warning or cause, let alone probable cause, was grabbed by four male NYPD police officers identified at this point only as JOHN DOES. These four police officers slammed the plaintiff MARCIA STUART face down onto a parked vehicle. At the same time, her left arm was being wrenched behind her back by one of the JOHN DOE arresting officers. The incident happened so quickly and with such force, that the plaintiff's cell phone that she was holding in her hand broke in half.

33. The arresting officers, including on information and belief, defendant DONNA BUSACCO, Shield No. 00985, as well as defendant JOHN DOES, handcuffed the plaintiff

behind her back and placed her in a patrol car with another person who had been arrested.

Sometime later, plaintiff MARCIA STUART was transported to the 79th Precinct. At the precinct, the plaintiff was held for approximately two hours, issued a summons returnable in the Kings County Criminal Court and eventually released.

34. The name of the arresting officer on her summons was defendant BUSACCO. After appearing in criminal court on three occasions, the plaintiff's case was dismissed with the acceptance of an Adjournment in Contemplation of Dismissal ("ACD").

35. At no time prior to being grabbed and assaulted by the defendant police officers was plaintiff MARCIA STUART engaging in any unlawful, wrongful or disorderly conduct.

36. At no time did the plaintiff MARCIA STUART resist arrest or engage in any conduct that could reasonably be construed as endangering or threatening any police officer or any other individual.

37. The use of force against plaintiff MARCIA STUART was objectively unreasonable in light of the circumstances then and there prevailing, and as such constituted excessive force against plaintiff's person, causing her serious and lasting injury.

38. As a direct and proximate result of the actions and conduct of the defendants, plaintiff MARCIA STUART suffered physical and mental injury, pain and suffering, mental anguish, emotional distress, deprivation of liberty, and deprivation of her constitutional rights.

PLAINTIFF IVAN RAWLS

39. On June 10, 2006, at approximately 4:00 p.m., plaintiff IVAN RAWLS was on his way home from school. He had exited the "C" train station at the corner of Fulton and Nostrand. After walking several feet, he stopped to observe approximately four police officers arresting a

young black man. The arrestee was placed into the back seat of an NYPD patrol car, which drove off at a high rate of speed.

40. Plaintiff IVAN RAWLS continued walking up Nostrand toward Macon Street. As he approached the intersection, he saw what he believed to be the same patrol car he had just observed earlier traveling down Macon street at a high rate of speed, run a red light and crash into a car traveling southbound on Nostrand Avenue. The impact from the police vehicle forced the struck car onto the sidewalk and into a store located at the corner of Nostrand and Macon.

41. The plaintiff stood on the sidewalk near the intersection of the accident scene. He observed that the two people in the vehicle that had been struck by the patrol car, both of whom were black, were injured. After observing this scene for a while, including the gathering of people around the crash site and the arrival of numerous police officers, plaintiff IVAN RAWLS began walking away from the area.

42. While he was attempting to leave the scene of this accident, and without any justification, plaintiff IVAN RAWLS was ordered by one of the JOHN DOE police officers, a tall, white, male with short cropped hair wearing plainclothes, to get off of the street.

43. When plaintiff IVAN RAWLS looked toward the badge number on the officer's shield, the officer yelled out, "arrest him." Thereupon, several uniformed JOHN DOE police officer defendants, grabbed RAWLS, picked him up and threw him to the ground.

44. The defendant JOHN DOE police officers then proceeded to place handcuffs on plaintiff IVAN RAWLS. While handcuffing the plaintiff, the officers stomped on him, shoving their feet into his back and neck.

45. The plaintiff was then roughly removed from the ground by the defendant JOHN

DOE police officers, escorted to a police vehicle and placed into the backseat. He was eventually taken to the 79th precinct where he was booked and issued a summons, signed by defendant VLAD KOGAN, Shield No. 5725, returnable in Kings County Criminal Court.

46. While at the precinct, plaintiff IVAN RAWLS became ill as a result of the being assaulted and arrested by the defendant police officers. The plaintiff was treated by emergency care workers who were called to the precinct. He was later taken to two different hospitals, Woodhull and then Coney Island, where he was further treated for injuries caused by the treatment he was subjected to by the defendant police officers herein.

47. At no time prior to being grabbed and beaten by the defendants was plaintiff IVAN RAWLS engaging in any unsafe, wrongful or disorderly conduct and at all times he was obeying police orders.

48. At no time did plaintiff IVAN RAWLS resist arrest or engage in any conduct that could reasonably be construed as endangering or threatening any police officer or other individual.

49. The use of force described in the preceding paragraphs was objectively unreasonable in light of the circumstances then and there prevailing, and as such constituted excessive force directed against plaintiff's person, causing him serious and lasting injury.

50. As a direct and proximate result of the foregoing actions, plaintiff IVAN RAWLS suffered physical injury, pain, and suffering, mental anguish, emotional distress, deprivation of liberty, and other expenses, including, but not limited to medical expenses.

PLAINTIFFS ANEB SENKITA-EL and ABDUL HAAQ ISLAM

51. On June 10, 2006, at approximately 4:00 p.m., plaintiffs ANEB SENKITA-EL

and ABDUL HAAQ ISLAM were walking with a group of community activists south on Nostrand Avenue near Macon Street, passing out anti-violence flyers to people, particularly young people, in the neighborhood.

52. As the plaintiffs approached the intersection of Nostrand Avenue at Macon Street, they heard a loud crash. They walked toward the sound of the crash and observed the accident scene as described above.

53. Plaintiffs ANEB SENKITA-EL and ABDUL HAAQ ISLAM were among the many observers who began voicing their concern about the fact that the two individuals who appeared to be most seriously hurt in the accident, both of whom were black, were not being rendered emergency assistance, while the two white police officers, who did not appear to be injured, were being treated by the police and paramedics who responded almost immediately to the accident scene.

54. The plaintiffs ANEB SENKITA-EL and ABDUL HAAQ ISLAM were among the crowd of people who were aggressively pushed away from the scene of the accident and onto a sidewalk by the defendant police officers herein.

55. While they were standing on the sidewalk and expressing their displeasure with the lack of attention being shown to the victims of this accident, a white, male police officer in plainclothes, who on information and belief was defendant Lieutenant LOPIELO, without warning, suddenly reached into the crowd toward plaintiff ANEB SENKITA-EL and yelled, "that's it." Plaintiff ANEB SENKITA-EL became alarmed and began to head north on the sidewalk on Nostrand, where he was being pursued by numerous police officers. Plaintiff ABDUL HAAQ ISLAM saw that ANEB SENKITA-EL was being pursued by numerous police

officers and he followed in that general direction.

56. Plaintiff ANEB SENKITA-EL went approximately one half block, when he was grabbed by his right arm in the area of his wrist by a police officer who plaintiff later identified as defendant police officer, KEVIN MCCARTHY, Shield No. 2022. Plaintiff ABDUL HAAQ ISLAM observed ANEB SENKITA-EL being grabbed by defendant MCCARTHY, and others, and being forced to the ground between two parked cars.

57. After plaintiff ANEB SENKITA-EL was forced to the ground, defendant police officer MCCARTHY, along with approximately ten additional defendant JOHN DOE police officers began to kick and beat plaintiff ANEB SENKITA-EL about the head and body while he lay face down on the ground. The beating inflicted on plaintiff ANEB SENKITA-EL was totally unjustified and resulted in the plaintiff suffering severe injuries to his body, including, but not limited to, multiple fractures of his scapula. At no time during this assault, or any of the other wrongful conduct engaged in by the defendant police officers, did any police officers, including ranking police officers at the scene, intervene to protect the constitutional rights of the plaintiffs.

58. As plaintiff ABDUL HAAQ ISLAM stood by watching ANEB SENKITA-EL being beaten by the police, a white, male police supervisor, who plaintiff believes to be defendant LOPIELO, pointed at ISLAM and yelled, "arrest him." Several defendant JOHN DOE police officers grabbed plaintiff ADBUL HAAQ ISLAM, threw him to the ground and began kicking and punching ISLAM about his head and body. His arms were excessively forced behind his back and his hands cuffed. While being handcuffed, one of the defendant police officers told ISLAM that he was going to break his arm.

59. Following this unnecessary and unjustified conduct by the police officer

defendants herein, plaintiffs ANEB SENKITA-EL and ADBUL HAAQ ISLAM were placed in excessively tight handcuffs. Despite their pleas to have them loosened, the individual defendant JOHN DOE police officers refused to adjust the handcuffs.

60. Both plaintiffs ANEB SENKITA-EL and ADBUL HAAQ ISLAM were then picked up from the ground by defendant officers, placed into a squad car, transferred then to another squad car with two other arrestees and eventually transported to the 79th precinct. Particularly for plaintiff ANEB SENKITA-EL, the manner in which they were picked up from the ground exacerbated the injuries they had already received and cause them great physical pain and suffering.

61. At no time did plaintiffs ANEB SENKITA-EL or ADBDUL HAAQ ISLAM resist the police at any time prior, during or after their arrests.

62. Following their unnecessary and unjustified arrests, the plaintiffs were transported to the 79th precinct, where they were jailed for several hours. Eventually both plaintiffs were released with desk appearance tickets for disorderly conduct, signed by defendant DONNA BUSACCO, shield No. 00985, returnable in Kings County Criminal Court. All charges against both ANEB SENKITA-EL and ABDUL HAAQ ISLAM were subsequently dismissed without requiring them to even appear in court.

63. After their release, plaintiffs ANEB SENKITA-EL and ABDUL HAAQ ISLAM went immediately to Kings County Hospital where they sought medical treatment for their injuries caused by the unjustified, unnecessary and excessive force inflicted on them by the defendant police officers herein.

64. At no time prior to being grabbed and beaten by the defendants were plaintiffs

ANEB SENKITA-EL and ABDUL HAAQ ISLAM engaging in any unsafe, wrongful or disorderly conduct.

65. At no time did the plaintiffs ANEB SENKITA-EL and ABDUL HAAQ ISLAM resist arrest or engage in any conduct that could reasonably be construed as endangering or threatening any police officer or other individual.

66. The use of force described in the preceding paragraphs was objectively unreasonable in light of the circumstances then and there prevailing, and as such constituted excessive force directed against plaintiffs' persons, causing them serious injury.

67. As a direct and proximate result of the foregoing actions, the plaintiffs ANEB SENKITA-EL and ABDUL HAAQ ISLAM suffered physical injury, pain, and suffering, mental anguish, emotional distress, and deprivation of liberty.

68. The individual defendants' act and omissions described above were intentional, wanton, willful and malicious, and were performed with deliberate indifference and/or reckless disregard of the plaintiffs' constitutional rights, entitling the plaintiffs to punitive damages.

69. The individual defendants' act and omission described above were contrary to and violated existing court orders then in effect with regard to the treatment of bystanders at arrest situations.

FEDERAL CLAIMS

70. Plaintiffs incorporate by reference the allegations set forth in Paragraphs 1 through 69 as if fully set forth herein.

71. The acts and conduct described above did violate plaintiffs' rights

(a) to be free from unreasonable search and seizure;

- (b) not to be subjected to excessive or unreasonable use of force;
- (c) to be free of deprivations of liberty without due process of law;
- (d) to be free of deprivations of their right to peacefully assemble and their right to freedom of expression;

all in violation of the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

72. As a result of the acts and conduct of the defendants complained of herein, the plaintiffs have suffered physical injury, pain, and suffering, mental anguish, and emotional distress, deprivation of liberty and property, loss of income and other expenses, including, but not limited to medical expenses.

STATE CLAIMS

73. Plaintiff incorporates by reference the allegations set forth in Paragraphs 1 through 72 as if fully set forth herein.

74. The acts and conduct of the defendants constitute negligence and gross negligence, and negligence in training, hiring, and supervision, and conspiracy, under the laws of the State of New York. These acts and conduct also violated plaintiffs' rights under Article I of the Constitution of the State of New York.

75. Defendant CITY OF NEW YORK is liable for the actions of the individual defendants under the doctrine of respondeat superior.

76. As a result of the acts and conduct of the defendants complained of herein, the plaintiffs have suffered physical injury, pain, and suffering, mental anguish, and emotional distress, deprivation of liberty and property, loss of income and other expenses, including, but

not limited to medical expenses.

77. Plaintiffs served notices of claim upon defendant CITY OF NEW YORK within 90 days of the incident and have otherwise complied with the statutory requirements of the General Municipal Law of the State of New York. Although more than 30 days have elapsed since service of the notice and plaintiffs' 50-h hearing have been taken, this defendant has neglected to adjust or pay such claim.

WHEREFORE, plaintiffs demands the following relief jointly and severally against all defendants:

- (a) a declaration that defendants violated the federal rights of plaintiffs;
- (b) compensatory damages for physical, emotional, and economic injuries suffered by plaintiffs by reason of defendants' unlawful and unjustified conduct, in an amount just and reasonable and in conformity with the evidence at trial;
- (c) punitive damages against the individual defendants to the extent allowable by law;
- (d) attorneys fees;
- (e) the costs and disbursements of this action; and
- (f) such other and further relief as appears just and proper.

Dated: New York, New York
September 7, 2007


JONATHAN C. MOORE (JM 6902)

BELDOCK, LEVINE & HOFFMAN, LLP
99 Park Avenue, Suite 1600
New York, New York 10016
(212) 490-0400

Roger S. Wareham (RW4751)
394 Putnam Avenue
Brooklyn, New York 11216
718.230.5270

Attorneys for the Plaintiffs